intended that there be wide access by the public to the records and papers of the advisory committee. It is felt, therefore, that the public has adequate participation in the decisions of the committees. The proposed regulation is hereby adopted without change and is set forth below.

Effective date. This VA Regulation is effective January 2, 1974.

Approved: January 2, 1974.

By direction of the Administrator.

[SEAL] FRED B. RHODES,
Deputy Administrator.

In § 21.4207, paragraph (a) is amended to read as follows:

§ 21.4207 Failure of school to meet requirements.

When the Veterans Administration discovers facts which appear to warrant a finding that the school is in violation of specific criteria of 38 U.S.C. chs. 34, 35 or 36, including failure to meet requirements for approval of a course offered to a veteran or eligible person and institution of policies regarding payment of tuition and fees so as to deny the benefits of the advance payment program, the facts will be referred to the field station Committee on Educational Allowances.

(a) *Committee on Educational Allowances.* The Committee on Educational Allowances in the field station is authorized to make recommendations on action to be taken for the purposes of this section, subject to approval by the station head. The committee will include a minimum of three staff members designated by the station head. The recommendation of the committee, when approved by the station head, becomes the final administrative decision of the Veterans Administration unless an application for review is filed as provided in paragraph (d) of this section.

* * * * *

[FR Doc.74-914 Filed 1-10-74;8:45 am]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR—APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5403]

[AA-8406]

ALASKA

Partial Revocation of Section 11 Around Tatitlek; Utility Corridor Withdrawal; Classification and Protection of Public Interest Withdrawal and Modification of Certain Land Orders

In the matter of partial revocation of section 11 withdrawal around village of Tatitlek; partial revocation of utility corridor withdrawal; partial revocation of classification and protection of public interest withdrawal; modification of Public Land Orders Nos. 5184 and 5186.

By virtue of the authority vested in the Secretary of the Interior by sections 17(d)(1) and 22(h)(4) of the Alaska Native Claims Settlement Act of December 18, 1971, 85 Stat. 688, 708, 714 (hereinafter referred to as the "Act"), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. The withdrawal made for the Native village of Tatitlek (Tatilek) by section 11 of the Act, is hereby terminated as far as it affects the following described lands:

COPPER RIVER MERIDIAN

(Protracted Descriptions)

T. 9 S., Rs. 6 through 8 W.
T. 9 S., R. 9 W.,
Secs. 1 and 2;
Secs. 11 through 14;
Secs. 23 through 26;
Secs. 35 and 36.
T. 10 S., R. 6 W.,
Secs. 1 through 18.
T. 10 S., R. 7 W.,
Secs. 1 through 19.
T. 10 S., R. 8 W.,
Secs. 1 through 19.
T. 10 S., R. 9 W.,
Secs. 1 and 2;
Secs. 11 and 22.

The areas described, including both public and nonpublic land, aggregate approximately 82,370 acres.

The above described lands are determined, in accordance with section 13(b) of the Act, as being within 2 miles of the boundary of the First Class City of Valdez, and in accordance with section 22(1) of the Act, are not subject to selection by a village corporation or a regional corporation.

2. Public Land Order No. 5150 of December 28, 1971, as amended by Public Land Orders Nos. 5151 of December 29, 1971, and 5182 of March 9, 1972, and as modified and corrected by Public Land Order No. 5190 of March 17, 1972, withdrawing lands for a utility and transportation corridor in Alaska, and Public Land Orders Nos. 5180, 5183 of March 9, 1972, withdrawing lands for classification and protection of the public interest in the lands, are hereby revoked so far as they affect the following described lands:

COPPER RIVER MERIDIAN

(Protracted Descriptions)

T. 9 S., R. 6 W.
T. 9 S., R. 7 W.,
Secs. 13, 14, 23, and 24.

The areas described aggregate approximately 11,420 acres.

3. The lands in paragraph 1 outside the utility and transportation corridor established by Public Land Order No. 5150, as amended, and the lands described in paragraph 2 of this order are hereby deleted from Public Land Order No. 5184 of March 9, 1972, and are hereby added to Public Land Order No. 5186 of March 15, 1972. All of the lands described in paragraph 1 except those lands in the transportation and utility corridor remaining after the revocation in paragraph 2, are hereby classified as suitable for State Selections.

4. In order to fulfill the purposes of the transportation and utility corridor as established by Public Land Order No. 5150 of December 28, 1971 (36 FR 25410), as amended, which withdrew lands for a utility and transportation corridor in the State of Alaska, PLO 5150 is hereby amended to the extent necessary for the issuance of rights-of-way, leases, permits, or other authorizations necessary or related to the construction, operation, maintenance or termination of an oil or gas pipeline system, or the construction, maintenance or operation of any transportation or utility system.

5. The following Public Land Orders approved on the dates indicated, reserving certain lands in Alaska for military purposes and air navigation purposes were modified by the Trans-Alaska Pipeline Authorization Act of November 16, 1973 (87 Stat. 584–588) to permit the issuance of rights-of-way, leases, permits, or other authorizations necessary or related to the construction, operation or maintenance of a trans-Alaska pipeline system as authorized by said Act:

Public land order No.	Date	Holding agency
1205	Aug. 10, 1955	Department of Air Force.
1208	Aug. 8, 1955	Do.
1444	July 12, 1957	Do.
255	Dec. 15, 1944	War Department.
684	Nov. 9, 1950	Department of Air Force.
1345	Oct. 16, 1956	Do.
1508	Sept. 10, 1957	Department of Army.
1523	Oct. 8, 1957	Do.
2418	June 27, 1961	Department of Army and Federal Aviation Administration.
2768	Aug. 31, 1962	Do.
3922	Feb. 2, 1966	Do.
5187	Mar. 15, 1972	Department of the Interior.

6. Public Land Order No. 1478 of September 4, 1957, withdrawing public lands for the use of the Bureau of Public Roads was modified by the Trans-Alaska Pipeline Authorization Act of November 16, 1973 (87 Stat. 584–588), to permit the issuance of rights-of-way, leases, permits, or other authorization necessary or related to the construction, operation or maintenance of a trans-Alaska pipeline system as authorized by said Act.

7. This order reaffirms the actions taken in Public Land Order No. 5150 as amended by Public Land Order No. 5151, pursuant to section 17(c) of the Act, and continues in full force and effect on all national forest and public lands described therein not expressly deleted by paragraph 2 of this order.

8. It is hereby determined that the promulgation of this public land order is not a major Federal action significantly affecting the quality of the human environment and that no detailed statement pursuant to section 102(2)(C) of the National Environmental Policy Act of 1969 (42 U.S.C. 4332(2)(C)), is required.

ROGERS C. B. MORTON,
Secretary of the Interior.

JANUARY 7, 1974.

[FR Doc.74-971 Filed 1-10-74;8:45 am]

[Public Land Order 5404]

ALASKA

Restoration and Revocation of Certain Powersite, etc.

In the matter of Powersite Restoration No. 733; revocation of Powersite Re-

serve No. 491; revocation of withdrawals for Power Projects Nos. 1101, 1946, and 1970; modification of Powersite Classification No. 445.

By virtue of the authority contained in section 24 of the Federal Power Act of June 10, 1920, 41 Stat. 1075, as amended (16 U.S.C. 818 (1970)), and pursuant to the determination of the Federal Power Commission in DA–112–Alaska, it is ordered as follows:

1. Executive Order of July 31, 1915, which established Powersite Reserve No. 491, is hereby revoked so far as it affects the following described land:

All lands within 100 feet of the high water line of the reservoir and within 100 feet of the centerline of No. 1 pipeline, No. 1 flume, and No. 2 pipeline, upper power house site of approximately 5.5 acres, lower power house site of approximately 10 acres. All lands within 50 feet of the centerline of the transmission line leading from the upper power house site to the south boundary of the Valdez townsite. All lands as shown on a map designated (Exhibit F) and entitled "Map of Power Project, Solomon Gulch, Alaska," and filed in the office of the Federal Power Commission on June 13, 1930, aggregating approximately 206 acres.

The above described lands are probably in the following protracted subdivisions:

COPPER RIVER MERIDIAN

T. 9 S., R. 6 W.,
Secs. 14, 15, 16, 18, 20, 21, 23.

In DA–112–Alaska, the Federal Power Commission determined that the power potential of the above described lands had been developed under Power Projects Nos. 1101, 1946, and 1970, that the licenses for said projects had expired or had been surrendered, and that there was no objection to the restoration of subject lands. The withdrawals of the above lands for Power Projects Nos. 1101, 1946, and 1970, are hereby revoked.

2. The State of Alaska has 90 days in which to exercise its preference right granted under the provisions of 16 U.S.C. 818, to select any of the above described lands required as a right-of-way for a public highway or as a source of materials for the construction and maintenance of such highways. Subject lands will remain closed to the operation of the public land laws and mineral leasing laws because they are covered by other withdrawals.

3. Pursuant to a determination by the Federal Power Commission in DA–112–Alaska, Public Land Order No. 3520 of January 5, 1965, creating Powersite Classification No. 445, subject powersite is hereby modified so far as it relates to the following described land to the extent necessary to permit the issuance of rights-of-way, leases, permits, or other authorizations necessary or related to the construction, operation, maintenance or termination of an oil or gas pipeline, subject to the retention of prior rights for reservoir or power development, and subject to the condition that in the event the said land is required for such purposes any improvements or structures placed thereon which shall be found to interfere with such development, shall be removed or relocated as may be necessary to eliminate interference with reservoir or power development at no cost to the United States, its permittees or licensees:

FAIRBANKS MERIDIAN, ALASKA

(Protracted Survey)

T. 9 N., R. 6 W.,
Sec. 19.
T. 9 N., R. 7 W.,
Secs. 2, 3, 10, 11, 12, 13, 14.
T. 10 N., R. 7 W.,
Secs. 18, 19, 20, 28, 29, 30, 31.
T. 10 N., R. 8 W.,
Secs. 3, 4, 5, 6, 8, 9, 10, 14, 15, 24.
T. 11 N., R. 8 W.,
Secs. 30, 31, 32.
T. 11 N., R. 9 W.,
Secs. 22, 35, 36.
T. 12 N., R. 10 W.,
Secs. 6, 7, 14, 15, 16, 18, 19, 21, 22.
T. 13 N., R. 10 W.,
Sec. 31.
T 12 N., R. 11 W.,
Secs. 1, 2, 13, 24.
T. 13 N., R. 11 W.,
Secs. 7, 8, 16, 17, 18, 20, 21, 22, 25, 26, 27, 34, 35, 36.
T. 13 N., R. 12 W.,
Secs. 1, 2, 12.
T. 14 N., R. 12 W.,
Secs. 5, 6, 7, 8, 16, 17, 18, 20, 21, 27, 28, 34, 35.
T. 15 N., R. 12 W.,
Secs. 7, 8, 17, 18, 20, 31.

4. It is hereby determined that the promulgation of this public land order is not a major Federal action significantly affecting the quality of the human environment and that no detailed statement pursuant to section 102(2)(C) of the National Environmental Policy Act of 1969, (42 U.S.C. section 4332(2)(C)), is required.

ROGERS C. B. MORTON,
Secretary of the Interior.

JANUARY 7, 1974.

[FR Doc.74–972 Filed 1–10–74;8:45 am]

Title 45—Public Welfare

CHAPTER XV—FUND FOR THE IMPROVEMENT OF POSTSECONDARY EDUCATION, DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

PART 1501—SUPPORT FOR IMPROVEMENT OF POSTSECONDARY EDUCATION

A proposal was published in the FEDERAL REGISTER on November 28, 1973 (vol. 38, No. 228, p. 32814) to amend the existing regulations for this program in order to: (a) Establish special focus program competitions; (b) establish a preapplication procedure for the broader comprehensive program and revise some of the criteria therefore; and (c) revise the existing audit requirements. Interested persons were given 30 days in which to submit written comments, suggestions, or objections regarding the proposed amendments.

In accordance with the two comments received, the proposed regulations are amended as follows: § 1501.12 does not require audits by recipients other than State and local governments. The change conforms to Department policy set forth in 45 CFR 74.61(h), (38 FR 26279).

In light of the foregoing, these regulations are amended as set forth below.

Effective date. These regulations will be effective January 11, 1974.

(Federal Domestic Assistance Catalogue No. 13.538: Fund for the Improvement of Postsecondary Education)

Approved: January 8, 1974.

CASPAR W. WEINBERGER,
Secretary of Health, Education, and Welfare.

Sec.
1501.1 Purpose.
1501.2 Applicability of civil rights provisions.
1501.3 Definitions.
1501.4 Eligibility for assistance.
1501.5 Types of assistance.
1501.6 Program categories.
1501.7 Criteria for evaluating applications.
1501.8 Comprehensive program objectives.
1501.9 Special focus program objectives.
1501.10 Application procedures.
1501.11 Retention of records.
1501.12 Audits.
1501.13 Limitations on costs.
1501.14 Reporting.
1501.15 Final accounting.

AUTHORITY: Sec. 404, General Education Provisions Act, as added by sec. 301(a)(2) of Public Law 92–318, 86 Stat. 327 (20 U.S.C. 1221d), unless otherwise noted.

§ 1501.1 Purpose.

The purpose of the regulations in this part is to implement the provisions of section 404 of the General Education Provisions Act as amended which provides for grants to, and contracts with, institutions of postsecondary education and other public and private educational institutions and agencies to improve postsecondary educational opportunities. The program is administered by the Fund for the Improvement of Postsecondary Education, a unit within the Office of the Assistant Secretary for Education of the Department of Health, Education, and Welfare, with the advice of a Board of Advisors.

(20 U.S.C. 1221d)

§ 1501.2 Applicability of civil rights provisions.

(a) Federal financial assistance under this part is subject to the regulations in part 80 of this title, issued by the Secretary of Health, Education, and Welfare and approved by the President, to effectuate the provisions of title VI of the Civil Rights Act of 1964 (Pub. L. 88–352).

(42 U.S.C. 2000d)

(b) Federal financial assistance under this part is also subject to the provisions of title IX of the Education Amendments of 1972 (prohibition of sex discrimination), and any regulations issued thereunder.

(20 U.S.C. 1681–86; Public Law 92–318, section 906)

§ 1501.3 Definitions.

As used in this part—

"Fiscal year" means a period beginning on July 1 and ending on the following June 30. (A fiscal year is designated in accordance with the calendar year in